



CASE NO. 160475101010
INCIDENT NO. /TRN: 9266469394A001

Pgs-13

THE STATE OF TEXAS

v.

LAIDLAW, WHITNEY ANNE

STATE ID NO.: ~~UNKNOWN~~ TX 12886225

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§

IN THE 339TH DISTRICT

COURT

HARRIS COUNTY, TEXAS

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(995- 988
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(994)

ORDER OF DEFERRED ADJUDICATION

Judge Presiding:	BELINDA HILL	Date Proceedings Deferred:	10/14/2019
Attorney for State:	JENNIFER JORDAN	Attorney for Defendant:	TRITICO, CHRISTOPHER L. 20232050

Offense:

IMPROPER RELAT W/STUDENT

Charging Instrument:
INDICTMENT

Statute for Offense:

Date of Offense: 8/1/2018 Defendant waived the right to trial by jury and entered the plea below:
GUILTY

Degree of Offense: 2ND DEGREE FELONY Findings on Deadly Weapon:
N/A

1st Enhancement Paragraph: N/A Finding on 1st Enhancement Paragraph:
N/A

2nd Enhancement Paragraph: N/A Findings on 2nd Enhancement Paragraph:
N/A

Terms of Plea Bargain (if any): or ☐ Terms of Plea Bargain are included and incorporated herein by this reference.
WITHOUT AN AGREED RECOMMENDATION
Reduced from: N/A

ADJUDICATION OF GUILT DEFERRED;

DEFENDANT PLACED ON DEFERRED ADJUDICATION COMMUNITY SUPERVISION.

PERIOD OF DEFERRED ADJUDICATION COMMUNITY SUPERVISION: 10 YEARS.

CONFINEMENT AS A CONDITION OF DEFERRED ADJUDICATION COMMUNITY SUPERVISION:

☐ The Court ORDERS Defendant confined N/A in ☐ THE COUNTY JAIL ☐ A STATE JAIL FACILITY as a condition of deferred adjudication community supervision. The period of confinement as a condition of community supervision starts when Defendant arrives at the designated facility. absent a special order to the contrary.

<u>Fine:</u> \$ 5,000	<u>Court Costs:</u> \$ as assessed	<u>Restitution:</u> \$ N/A	<u>Restitution Payable to:</u> N/A (See special finding or order of restitution which is incorporated herein by this reference.)
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☒ Defendant is required to register as sex offender in accordance with Chapter 62, Tex. Code Crim. Proc.
(For sex offender registration purposes only) The age of the victim at the time of the offense was 14 YEARS .

Was the victim impact statement returned to the attorney representing the State? N/A

This cause was called and the parties appeared. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared with Counsel.
☐ Defendant appeared without counsel and knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered the plea indicated above. The Court admonished Defendant. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of the plea. The Court received the plea and entered it of record.

RECORDER'S MEMORANDUM
This instrument is of poor quality
at the time of imaging.

Having heard the evidence submitted, the Court FINDS that such evidence substantiates Defendant's guilt. However, the Court FINDS that it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on deferred adjudication community supervision.

Therefore, the Court ORDERS no judgment entered at this time. The Court further ORDERS Defendant placed on deferred adjudication community supervision for the period of time indicated above as long as Defendant abides by the conditions of the deferred adjudication community supervision.

The Court FINDS that the Presentence Investigation, if so ordered, was done according to the applicable provisions of Subchapter F, Chapter 42A, Tex. Code Crim. Proc.

After having conducted an inquiry into Defendant's ability to pay, the Court ORDERS Defendant to pay the fine, court costs, and restitution, if any, as indicated above.

The document setting forth the conditions of deferred adjudication community supervision is attached and incorporated herein by this reference.

Furthermore, the following special findings or orders apply:

APPEAL WAIVED. NO PERMISSION TO APPEAL GRANTED.

180 days as a condition of probation of 180 work hours beginning 10/18/2019

Date Judgment Entered: 10/14/2019

x Belinda Hill

**BELINDA HILL
JUDGE PRESIDING**

Clerk: J BAXTER

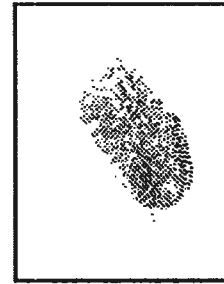
Notice of Appeal Filed: _

Mandate Received: _____ Type of Mandate: _____

After Mandate Received, Sentence to Begin Date is: _____

Jail Credit: _____ DAYS

Case Number: 160475101010 Court: 339th Defendant: **LAIDLAW, WHITNEY ANNE**



Thumbprint

STATE OF TEXAS
VS.
WHITNEY ANNE LAIDLAW

339TH DISTRICT COURT
OF
HARRIS COUNTY, TEXAS

CONDITIONS OF COMMUNITY SUPERVISION

On this the 14th day of October, 2019, you are granted 10 years community supervision for the FELONY - LEVEL 2 offense of IMPROPER RELATIONSHIP BETWEEN EDUCATOR/STUDENT in accordance with Article 42.12, Texas Code of Criminal Procedure, in the 339TH DISTRICT COURT of Harris County, Texas, by the Honorable Belinda Hill Judge Presiding. It is the order of this Court that you abide by the following Conditions of Community Supervision:

1. Commit no offense against the laws of this or any other State or of the United States. You are to report any arrests within 24 hours.
2. Not use, possess, or consume any illegal drug or prescription drug not currently prescribed to you by a medical professional. You shall bring all current prescription containers to your Community Supervision Officer. If new medication is prescribed, you must bring the new prescription containers by your next scheduled report date.
3. Report to the Community Supervision Officer as directed for the remainder of the supervision term unless so ordered differently by the Court.
4. Permit a Community Supervision Officer to visit you at your home, place of employment or elsewhere.
5. Work at suitable employment and/or attend school full-time. Present either verification of employment or provide a log of all attempts to secure employment to your Community Supervision Officer as directed. You must notify HCCSCD of any change in your employment status by your next scheduled reporting date.
6. Abide by the rules and regulations of the Harris County Community Supervision and Corrections Department (hereinafter referred to as HCCSCD).
7. Remain within Harris County, Texas or any counties directly touching Harris County, Texas. You may not travel outside these locations unless you receive prior written permission from the Court through your Community Supervision Officer.
8. Notify HCCSCD by your next report date of any change in residence.
9. Submit a non-diluted, valid, unaltered sample for the purpose of alcohol/drug monitoring at the request of the HCCSCD.
10. Participate in the HCCSCD Community Service Restitution Program (CSRP). You shall perform 0 hours as directed by HCCSCD CSRP policy. Hours must be completed 60 days prior to termination.
11. Submit to an evaluation of your Educational skill level by 11/14/19. If it is determined that you have not attained the average skill of students who have completed the sixth grade in public schools in this State, you shall participate in a program that teaches functionally illiterate persons to read. If you are non-

CONDITIONS OF COMMUNITY SUPERVISION

Defendant **Whitney Anne Laidlaw**

Cause **160475101010**

English speaking, you will participate in English as a Second Language (ESL) program, if it is determined there is a need in order for you to meet the state mandate beginning upon referral until successfully discharged or released by further order of the Court.

12. Support your dependents as required by law. Provide your Community Supervision Officer with proof that you are in compliance with all court-ordered support of dependents.
13. Not ship, transport, possess, receive, or purchase a firearm, altered firearm, or ammunition, or attempt to ship, transport, possess, receive, or purchase a firearm, altered firearm, or ammunition.
14. Pay all fees through HCCSCD. All payments MUST be in the form of a Money Order, Cashier's Check or credit card. Online payments may be made with a credit card at PAYCSCD.COM. A \$2.00 transaction fee will be charged by HCCSCD to process each payment.
15. Pay a fine of \$5,000.00 and Court Costs at the rate of \$25.00 per month beginning 12/14/19 to Harris County through HCCSCD. Court grants credit for 0 days served.
16. Submit to an assessment through HCCSCD Assessment Unit as directed. Participate and successfully complete any program(s) as indicated by the assessment or until further order of the court.
17. Not use, consume, or possess alcoholic beverages.
18. Report in person to HCCSCD to provide a DNA sample to the Department of Public Safety at the direction of and through HCCSCD for the purpose of creating a DNA Record by 1/14/19 unless a sample has already been submitted under other state law and pay a \$0.00 fee.
19. Submit to any program of psychological and physiological assessment at the direction of your Community Supervision Officer, including the plethysmograph and/or polygraph, to assist in treatment, planning and case monitoring.
20. Reside at 1706 ADEN MIST DR. HOUSTON, TEXAS 77003 unless otherwise directed by the Court. With the exception of the listed address, you may not reside, go in, on or within 1000 feet of a premise where children commonly gather as referred in the above paragraph unless the terms and conditions of your community supervision have been amended.
21. Not supervise or participate in any program that includes participants or recipients persons who are seventeen (17) years of age or younger and that regularly provides athletic, civic or cultural activities beginning 10/14/19 for any reason except as specifically permitted by the Court.
22. Have no contact with any minor under the age of seventeen (17) beginning 10/14/19 for any reason except as specifically permitted by the Court.
23. Not accept or maintain employment which will bring you into direct contact with minor children unless approved by the Court.

CONDITIONS OF COMMUNITY SUPERVISION

Defendant Whitney Anne Laidlaw

Cause 160475101010

24. Comply with sex offender registration procedures as required by the laws of this or any other State in which you reside beginning 10/14/19 and at any time thereafter as directed by your Community Supervision Officer.
25. Report in person to the HCCSCD Sex Offender Unit within 24 hours or the following business day by 10:00 am for the purpose of completing your sex offender registration and completing the Static 99 risk assessment.
26. Participate in Sex Offender Treatment beginning immediately upon referral. Attend treatment and aftercare with a State of Texas registered Sex Offender Provider as recommended. Comply with all program rules regulations and guidelines until successfully discharged or released by further order of the Court.
27. Participate in the HCCSCD Sex Offender Caseload beginning 10/14/19. Comply with all program rules regulations and guidelines until successfully discharged or released by further order of the Court.
28. Serve 180 DAYS of confinement in the Harris County Jail or otherwise directed by the court beginning 10/18/19 to be served as follows: CLIENT WILL SERVE THE TIME OFF WORK HOURS.
29. Not have access to the Internet through any manner or method, unless it is equipped with an approved tracking software beginning 10/14/19 for any reason unless specifically ordered by the Court.
30. Not enter or remain within a sexually oriented business. A sexually oriented business is a commercial enterprise, the primary business of which is the offering of a service or the selling, renting or exhibiting of devices or any other items intended to provide sexual stimulation or sexual gratification to a patron including, but not limited to: massage parlors sex parlors nude studios modeling studios love parlors adult bookstores adult movie theaters adult video arcades adult motels adult cabarets escort agencies and sexual encounter centers.
31. Not reside, go in, on or within 1000 feet of a premises where children commonly gather, including, but not limited to, schools, day-care facilities, playgrounds, public or private youth centers, public swimming pools, or video arcade facilities. The measurement of the distance between the residence of the offender and the premises where children gather shall be measured using the shortest, direct, straight line from the property line of the offender's residence to the property line of the premises where children commonly gather. The measurement of distance from the person of the offender to the premises where children gather shall be made using the shortest, direct, straight line between the person of the offender and the property line of the premises where children gather.
32. You are ordered to continue sex offender treatment with Dr. Gallagher.
33. Have no contact with THE VICTIM in person, in writing, by telephone, via the internet, a third party or any other means for any reason except as specifically permitted by the Court. NO CONTACT WITH HER FAMILY AS WELL..
34. You are ordered to not have unsupervised contact with any children under the age of 17. Whoever will be supervising contact must attend a court approved chaperone class.

CONDITIONS OF COMMUNITY SUPERVISION

Defendant **Whitney Anne Laidlaw**

Cause **160475101010**

35. You are ordered not to teach children under the age of 17 both formally or informally.

Unofficial Copy Office of Marilyn Burgess District Clerk

CONDITIONS OF COMMUNITY SUPERVISION

Defendant Whitney Anne Laidlaw

Cause 160475101010

I understand that under the laws of this State, the Court shall determine the terms and conditions of Community Supervision, and may alter or modify said conditions during the period of Community Supervision. I further understand that failure to abide by these Conditions of Community Supervision may result in the revocation of Community Supervision or an adjudication of guilt.

Court Directive for Release

Community Supervision expires on October 13, 2029.

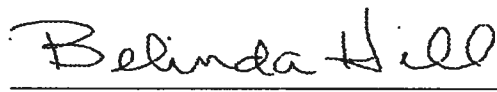


Whitney Anne Laidlaw
Defendant

SIGN

10/14/2019
Date Signed

Signed this the October 14, 2019.



Belinda Hill
Presiding Judge

SIGN



Belinda George
Court Liaison Officer

10/14/2019
Date Signed

SPN 02962896

Plea Guilty

STATE OF TEXAS
VS.
WHITNEY ANNE LAIDLAW

339TH DISTRICT COURT
OF
HARRIS COUNTY, TEXAS

1ST AMENDED CONDITIONS OF COMMUNITY SUPERVISION

In the above entitled and numbered cause, it appearing to the court that the above-named defendant was placed on community supervision for the offense of IMPROPER RELATIONSHIP BETWEEN EDUCATOR/STUDENT under certain terms and conditions set down by the court in the original supervision order dated 10/14/2019.

And it further appearing to the court that the best interest of the public and of the defendant as well will be served by the modification of the terms of supervision;

It is therefore ordered, adjudged and decreed by the court that the previous supervision order(s) be modified, to wit:

28. Condition 28 amended as follows: Serve 63 DAYS of confinement in the Harris County Jail or otherwise directed by the court beginning 10/18/19 to be served as follows: JUDGE MCCLURE IS WAIVING REMAINING JAIL TIME..

CONDITIONS OF COMMUNITY SUPERVISION
Cause 160475101010

I understand that under the laws of this State, the Court shall determine the terms and conditions of Community Supervision, and may alter or modify said conditions during the period of Community Supervision. I further understand that failure to abide by these Conditions of Community Supervision may result in the revocation of Community Supervision or an adjudication of guilt.

I have read or had read to me by the CLO/CSO Officer the conditions the Judge has added or changed. I also understand that if I do not accept these changes to my Conditions of Community Supervision, I must make a timely and specific objection and request to appear before the Judge. I understand that if I refuse to accept these amendments, the Judge may issue a warrant for my arrest and I have a right to be represented by counsel. If I am indigent, the Court shall appoint counsel for me. I also understand that I may voluntarily and knowingly accept this modification.

Court Directive for Release

Community Supervision currently expires on October 13, 2029.

Acceptance and Waiver

☒ I understand the terms and consequences for failing to comply with these Conditions of Community Supervision and I knowingly and voluntarily agree to this modification of my conditions. I further understand that by signing these conditions I am affirmatively accepting the terms and I waive any right to object or be represented by counsel.

Objection and Request for Immediate Hearing

☐ I object to this modification of my conditions of Community Supervision and request an immediate hearing before the Judge.



Whitney Anne Laidlaw
Defendant

SIGN

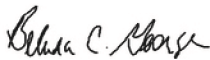
03/13/20
Date



Jesse F. McClure III
Judge Presiding

SIGN

March 13, 2020
Date



Belinda George
Court Liaison Officer

03/13/2020

STATE OF TEXAS
VS.
WHITNEY ANNE LAIDLAW

339TH DISTRICT COURT
OF
HARRIS COUNTY, TEXAS

2ND AMENDED CONDITIONS OF COMMUNITY SUPERVISION

In the above entitled and numbered cause, it appearing to the court that the above-named defendant was placed on community supervision for the offense of IMPROPER RELATIONSHIP BETWEEN EDUCATOR/STUDENT under certain terms and conditions set down by the court in the original supervision order dated 10/14/2019.

And it further appearing to the court that the best interest of the public and of the defendant as well will be served by the modification of the terms of supervision;

It is therefore ordered, adjudged and decreed by the court that the previous supervision order(s) be modified, to wit:

29. Client allowed to continue employment at the following locations: Law Office of Jeanne McDowell 603 Avondale Street Houston, Texas 77006, Be Yoga Studio 714 Yale Street #200 Houston, Texas 77007.

CONDITIONS OF COMMUNITY SUPERVISION
Cause 160475101010

I understand that under the laws of this State, the Court shall determine the terms and conditions of Community Supervision, and may alter or modify said conditions during the period of Community Supervision. I further understand that failure to abide by these Conditions of Community Supervision may result in the revocation of Community Supervision or an adjudication of guilt.

I have read or had read to me by the CLO/CSO Officer the conditions the Judge has added or changed. I also understand that if I do not accept these changes to my Conditions of Community Supervision, I must make a timely and specific objection and request to appear before the Judge. I understand that if I refuse to accept these amendments, the Judge may issue a warrant for my arrest and I have a right to be represented by counsel. If I am indigent, the Court shall appoint counsel for me. I also understand that I may voluntarily and knowingly accept this modification.

Court Directive for Release

Community Supervision currently expires on October 13, 2029.

Acceptance and Waiver

☒ I understand the terms and consequences for failing to comply with these Conditions of Community Supervision and I knowingly and voluntarily agree to this modification of my conditions. I further understand that by signing these conditions I am affirmatively accepting the terms and I waive any right to object or be represented by counsel.

Objection and Request for Immediate Hearing

☐ I object to this modification of my conditions of Community Supervision and request an immediate hearing before the Judge.



Whitney Anne Laidlaw
Defendant

SIGN

02/05/21
Date



Te'iva Bell
Judge Presiding

SIGN

February 8, 2021
Date



Jeffrey Weverka
Community Supervision Officer

02/05/2021

STATE OF TEXAS
VS.
WHITNEY ANNE LAIDLAW

339TH DISTRICT COURT
OF
HARRIS COUNTY, TEXAS

3RD AMENDED CONDITIONS OF COMMUNITY SUPERVISION

In the above entitled and numbered cause, it appearing to the court that the above-named defendant was placed on community supervision for the offense of IMPROPER RELATIONSHIP BETWEEN EDUCATOR/STUDENT under certain terms and conditions set down by the court in the original supervision order dated 10/14/2019.

And it further appearing to the court that the best interest of the public and of the defendant as well will be served by the modification of the terms of supervision;

It is therefore ordered, adjudged and decreed by the court that the previous supervision order(s) be modified, to wit:

30. Not have access to the Internet through any manner or method, unless it is equipped with an approved tracking software for any reason unless specifically ordered by the Court.
Condition is being WAIVED by the court.
31. Not accept or maintain employment which will bring you into direct contact with minor children unless approved by the Court. The court will allow supervised contact with minors while at work only.

CONDITIONS OF COMMUNITY SUPERVISION
Cause 160475101010

I understand that under the laws of this State, the Court shall determine the terms and conditions of Community Supervision, and may alter or modify said conditions during the period of Community Supervision. I further understand that failure to abide by these Conditions of Community Supervision may result in the revocation of Community Supervision or an adjudication of guilt.

I have read or had read to me by the CLO/CSO Officer the conditions the Judge has added or changed. I also understand that if I do not accept these changes to my Conditions of Community Supervision, I must make a timely and specific objection and request to appear before the Judge. I understand that if I refuse to accept these amendments, the Judge may issue a warrant for my arrest and I have a right to be represented by counsel. If I am indigent, the Court shall appoint counsel for me. I also understand that I may voluntarily and knowingly accept this modification.

Court Directive for Release

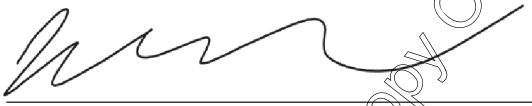
Community Supervision currently expires on October 13, 2029.

Acceptance and Waiver

☒ I understand the terms and consequences for failing to comply with these Conditions of Community Supervision and I knowingly and voluntarily agree to this modification of my conditions. I further understand that by signing these conditions I am affirmatively accepting the terms and I waive any right to object or be represented by counsel.

Objection and Request for Immediate Hearing

☐ I object to this modification of my conditions of Community Supervision and request an immediate hearing before the Judge.



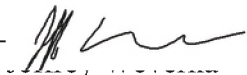
Whitney Anne Laidlaw
Defendant

SIGN 05/01/24
Date



Te'iva Bell
Judge Presiding

SIGN May 3, 2024
Date



Community Supervision Officer

05/01/2024